

Guddi Kesarwani v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 February 2025 · 2025:AHC:20157-DB · Writ - C No. 226 of 2025 ·
Writ disposed of; rejection quashed; connection directed within eight weeks.

HEADNOTE

An occupier of premises, even a trespasser, is entitled to a domestic electricity connection as a fundamental right under Article 21. Rejection of a clause 4.4 application solely for want of ownership proof, despite domicile, gas passbook and ration card showing residence, is unsustainable. The Executive Engineer's order dated 26 July 2024 is quashed and the licensee is directed to grant the connection within eight weeks upon statutory payment.

FACTUAL SUMMARY

The petitioner, occupying a house and claiming a one-seventh share in partition suit O.S. No. 11 of 2022, sought a domestic electricity connection. The CGRE, Prayagraj, had directed her to apply afresh. A coordinate Bench on 21 June 2024 left her to apply under clause 4.4(a) of the U.P. Electricity Supply Code, 2005. The Executive Engineer, Rambagh Division, Prayagraj, then rejected the application on 26 July 2024 for want of ownership proof, treating her domicile certificate, gas passbook, ration card and plaint as insufficient.

REUSABLE CONSTRUCTIONS

1. An occupier of premises, even a trespasser, is entitled to a domestic electricity connection as a fundamental right under Article 21. ¶ 5-6
2. Rejection of a Clause 4.4 application solely for want of ownership proof is unsustainable where domicile, gas passbook and ration card show residence. ¶ 5-6

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupancy proof for new connection

HOLDING

Rejection of a new domestic connection solely for want of ownership proof is unsustainable. An occupier, even a trespasser, is entitled to electricity as a fundamental right under Article 21; domicile certificate, gas passbook and ration card showing residence suffice. The 26 July 2024 rejection is quashed and the licensee is directed to grant the connection within eight weeks upon statutory payment. ¶ 5-6